

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MARINE TRANSPORT LOGISTICS, INC., *Complainant*

v.

CMA-CGM (AMERICA), LLC, *Respondent*.

DOCKET NO. 22-23

Served: October 28, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER DENYING MOTION TO AMEND COMPLAINT

On September 7, 2022, a Notice of Filing of Complaint and Assignment was issued for this proceeding, stating that Marine Transport Logistics, Inc. (“MTL”) had filed a complaint against CMA-CGM (America), LLC (“CCA” or “CMA”) alleging that CCA violated 46 U.S.C. § 41102(c) of the Shipping Act with regard to the shipment of MTL’s container cargo and charges incurred as a result. On October 3, 2022, CCA filed a motion to dismiss MTL’s complaint.

On October 11, 2022, MTL filed a combined response to the motion to dismiss and motion for leave to amend its complaint, to which it attached a redline copy of the proposed amended complaint. In this filing, MTL states that the “Respondent is CMA, and there can be no dispute as to whether they transported all of the subject shipments” and that “If CMA wishes for another entity to be listed on the complaint, namely ‘CMA CGM S.A.’, then such appears on the proposed amended complaint.” Response to Motion to Dismiss and Motion to Amend at 3.

On October 18, 2022, CCA filed a combined response to the amended complaint motion and reply to the dismissal. CCA states that although MTL informed it that MTL intended to file a motion to amend, MTL never asked CCA whether it consented to the motion to amend or otherwise sought to know CCA’s position on the issue of the motion to amend. Response to Amended Complaint Motion and Dismissal Reply at 1. CCA states that nevertheless it will not object to MTL’s motion to amend, subject to the following conditions: CCA is deleted as a respondent in the Amended Complaint; the Amended Complaint is “filed in the same manner as an original pleading;” the Amended Complaint is verified; the Amended Complaint is “timely filed by a date to be determined by the Presiding Officer;” served on CMA CGM S.A.; and, “the time for Respondent CMA CGM S.A. to respond to the Amended Complaint . . . must restart.” Response to Amended Complaint Motion and Dismissal Reply at 1-3.

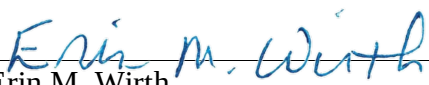
This order addresses only the motion for leave to file an amended complaint. Pursuant to Rule 62(a)(3)(i) of the Commission's Rules of Practice and Procedure, a complaint must be verified and contain, among other requirements, the "name, address, and, if known, email address of each person against whom [a] complaint is made." 46 C.F.R. § 502.62(a)(3)(i). Further, the complaint must contain a "clear and concise factual statement sufficient to inform *each respondent* with reasonable definiteness of the acts or practices alleged to be in violation of the law." 46 C.F.R. § 502.62(a)(3)(iii) (emphasis added).

Neither the motion to amend nor the proposed amended complaint clearly identify the entity that is being added. No address is provided by MTL to serve the newly added entity. The new entity is not listed or identified in the section identifying the parties to the proceeding. The relationship between the two Respondents is not clear and it is not clear which allegations apply to which Respondent. While some of this could be determined through discovery, at this point, there is not sufficient information provided by MTL to even serve the entity that it seeks to add.

The filings from CCA are clearer. CCA asserts that it is an agent acting for a disclosed principal and cites to the name and address of the principal listed on MTL's exhibit. However, the amended complaint is MTL's filing and MTL is responsible for identifying the entity it wishes to add to the proceeding, explaining in the complaint the allegations against the entity, and providing an address for service. MTL may ask counsel for CCA if they are willing to accept service and if not, MTL must provide an address where the new entity can be served.

CCA raises other issues about the amended complaint, for example that it needs to be filed in the same manner as the original pleading. Although the redline version is helpful, a non-redline copy must also be provided. A revised amended complaint would also need to be verified, as the amended complaint was, and will need to be served on the new entity.

For the reasons outlined above, it is hereby **ORDERED** that MTL's motion for leave to amend the complaint be **DENIED WITHOUT PREJUDICE**. MTL may file a motion for leave to file a revised amended complaint, with a copy of a revised amended complaint that fits the requirements outlined above, by November 7, 2022. No decision on the motion to dismiss will be issued until after November 7, 2022, so that MTL has an opportunity to file its revised amended complaint.


Erin M. Wirth
Chief Administrative Law Judge